

File number: DOS-2018-04762

Subject: Complaint regarding the use of the "Auvio" service of RTBF

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk Van Der Kelen and Christophe Boeraeve, members, resuming the case in this composition;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Considering Decision 170/2022 of November 22, 2022, of the Contentious Chamber;

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA), came into force on 01/06/2024. In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/eglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf> Files initiated before 01/06/2024 [as in this case] are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant";

The defendant: The Radio Television of the French Community (RTBF), an autonomous public enterprise of a cultural nature,

Having as counsel Mr. Peter Craddock, lawyer, whose office is located at Avenue Louise, 54, 1050 Brussels.

Hereinafter referred to as "RTBF" or "the defendant".

I. Facts and Procedure

1.
On June 18, 2018, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendant.

2.
According to his complaint, the complainant denounces that the defendant's live service (web streaming – Auvio) is accessible in Belgian territory only if visitors provide their personal data (email address/login via their Facebook or Google accounts). He further points out that the login process to the live service does not work if the user disables cookies and trackers from third-party companies used by the defendant's site.

3.
On October 15, 2018, the complaint was declared admissible based on Articles 58 and 60 of the LCA and forwarded to the Contentious Chamber under Article 62, § 1 of the LCA. The complainant was

informed of this on the same date.

4.

On October 23, 2018, the Contentious Chamber decided to request an investigation from the Inspection Service (SI) under Articles 63, 2° and 94, 1° of the LCA.

5.

On October 29, 2018, in accordance with Article 96, § 1 of the LCA, the Contentious Chamber's request for an investigation was transmitted to the SI. The complainant was informed of this on the same date.

6.

On January 28, 2020, the SI's investigation was concluded, the report was attached to the file, and it was transmitted by the general inspector to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA). The investigation report is based on two technical analysis reports dated July 1, 2019, and January 9, 2020.

7.

According to its report, the SI makes the following findings:

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Regarding the legal basis underlying the processing of registration data on the one hand and data related to personalization (profiling) on the other hand (finding 1):

The SI is of the opinion that the defendant cannot rely on its legitimate interest invoked in support of the processing of registration data (Article 6.1.f of the GDPR). As for the consent invoked additionally concerning the lawfulness of the processing of data related to personalization, the SI reminds that the data controller must have identified a legal basis prior to the processing of the data (in this case, the collection) and cannot switch from one basis to another.

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Regarding the legitimacy of the processing of personal data for advertising profiling purposes and the possibility of opposition (findings 2, 3, and 4): the SI notes that while the defendant's management contract allows it to use content recommendation algorithms, the definition of this term does not include advertising. The SI concludes that the legitimacy of the purpose of advertising profiling in the defendant's processing (and thus the compliance with Article 5.1.b of the GDPR) can be questioned. Given that at the time of registration, the user cannot refuse advertising profiling and that the platform does not seem to allow an easy opposition to it after registration, the SI concludes that the provisions of Articles 12.2, 21, and 25 of the GDPR do not appear to be met. Finally, the SI notes that the update of the purposes in the registration form to include the purpose of advertising profiling had, as of January 9, 2020, not been carried out despite the defendant's commitment to do so. The SI concludes that this appears incompatible with the requirements of Articles 12.1, 13, and 14 of the GDPR.

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Regarding the use of social media data for connection/registration purposes (findings 5 and 6): the SI concludes that the difference between the connection and registration mechanism to the platform via social media (Facebook, Google) lacks clarity and explanations, contrary to Articles 12.1, 13, and 14 of the GDPR. The SI adds that the mechanism used under the connection via a Facebook account is, in fact, the creation of an RTBF account with the provision of the user's Facebook data, without the latter being informed. The SI concludes that this process contradicts Articles 5.1.a), 5.1.b), and 5.1.c) as well as Articles 12.1, 13, and 14 of the GDPR.

2 The SI refers in this regard to the Guidelines on Consent under the GDPR adopted by the Article 29 Working Party on November 28, 2017, as revised and adopted on April 10, 2018. For information, the Contentious Chamber adds that this prohibition on switching from one legal basis to another has been confirmed by the European Data Protection Board (EDPB) in its Guidelines 5/2020 on consent under Regulation (EU) 2016/679. See point 123:

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf

3 The Contentious Chamber indicates that Article 27/1 of the Digital Services Act (DSA) (Regulation (EU) 2022/2065 of the European Parliament and of the Council of October 19, 2022, on a single

market for digital services and amending Directive 2000/31/EC (Digital Services Regulation)) provides the following in this regard: "Online platform providers that use recommendation systems shall establish in their general terms and conditions, in clear and comprehensible language, the main parameters used in their recommendation systems, as well as the options available to service recipients to modify or influence these main parameters." This mention is informative, as these findings are not part of the referral to the Contentious Chamber (see below).

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8.

On March 17, 2020, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be examined on the merits.

9.

On the same date, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions, namely April 14 (response conclusions) and May 14, 2020 (reply conclusions) for the defendant, and April 29, 2020 (reply conclusions) for the complainant.

10.

On April 19, 2020, the defendant requests a copy of the file (Article 95, § 2, 3° LCA), which is transmitted to her on March 25, 2020. She also expresses the wish to be heard by the Contentious Chamber in accordance with Article 51 of the Internal Rules of the APD.

11.

On April 14, 2020, the Contentious Chamber receives the response conclusions from the defendant. On May 14, 2020, it receives her summary conclusions. Her arguments can be summarized as follows, with the details of her defense discussed in the reasoning of this decision (see below).

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The first part of the defendant's conclusions aims to demonstrate that the findings of the SI investigation should be dismissed as the establishment of its report and the technical analysis reports on which it relies were not conducted in accordance with the principles of good administration.

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On the merits, the defendant contests that there has been any breach of the GDPR on her part.

12.

On April 28, 2020, the Contentious Chamber receives the response conclusions from the complainant. In general, the complainant denounces the attitude of the defendant and particularly insists on the practice of cookies, the lack of transparency, and the issue of the relevance of collecting personal data as a mandatory step to access online content.

13.

On November 22, 2022, the Contentious Chamber adopts decision 170/2022, whereby it dismisses the complaint under Article 100.1.1° of the LCA concerning the grievances covered by decision 168/2022 of the Contentious Chamber.

14.

This decision 168/2022 of transaction was addressed to the defendant of the present decision, namely RTBF. It followed an initiative investigation conducted by the SI regarding a series of grievances common to the complaint in question.

15.

The subject of this transaction concerned "potential violations of the GDPR regarding cookies and, more generally, the storage and consent for placing and further processing of information on the user's device as a data subject." The transaction thus covers the grievance "cookies" in its entirety raised by the complainant in his complaint (second part) as well as findings 1 (only for advertising profiling), 2, 3, and 4 of the SI investigation report.

16.

Within the limits of this decision 168/2022, the Contentious Chamber had thus exhausted its jurisdiction regarding the facts reported by the complainant and the corresponding "cookies" grievances. By virtue of its aforementioned decision 170/2022, the Contentious Chamber therefore

dismissed the complainant's complaint regarding these grievances for technical reasons, within the same material and temporal limits.

17.

For the period from November 20, 2020 (the temporal deadline of the transaction – which is also subsequent to the closure date of the SI investigation on January 28, 2020, in the present file) to this day, the Contentious Chamber, not having any findings supporting the grievances invoked by the complainant, has therefore not been able to establish any breach on the part of the defendant and has dismissed the complaint for technical reasons, also supporting criterion A.1. of its policy note on dismissals.

18.

In the same decision 170/2022, the Contentious Chamber specifies that regarding the processing of data in the context of connecting to and registering on the Auvio platform (findings 1 (regarding registration) and findings 5 and 6 of the inspection report), it will continue the procedure with a substantive examination (point 28 of the decision):

"Regarding the grievances related to data processing in the context of connecting to and registering on the Auvio platform (first part of the complainant's complaint and findings 1 (regarding registration), 5 and 6 of the inspection report), the Contentious Chamber decides to continue the examination, as these grievances are not covered by its transaction decision 168/2022. The defendant having requested to be heard in this case, the Contentious Chamber will schedule a hearing with the parties in due course."

19.

On November 30, 2022, the parties are informed that the hearing will take place on January 27, 2023. In its invitation letter to the hearing, the Contentious Chamber indicates that, in light of its decision 170/2022 regarding part of the grievances raised in the complaint (see above), the hearing will only address the grievances not covered by this decision 170/2022 as mentioned by the Contentious Chamber in point 28 of that decision.

20. The Contentious Chamber also requests the defendant, considering the time elapsed since the events and since the findings of the SI as well as considering the...

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modifications made by the defendant on its website during the proceedings, to kindly update the information provided to the Contentious Chamber: (a) regarding the login/account creation process for the Auvio system, notably via social networks on one hand and (b) regarding the information provided to users as of today on the other hand. The defendant is requested to communicate this factual information to the Contentious Chamber and to the complainant by January 4, 2023, at the latest. The Contentious Chamber adds that if desired, the complainant may respond to these updates until January 13, 2023. The defendant will ultimately have, if necessary, a final right of reply until January 24, 2023.

21.

On January 4, 2023, the defendant informs the Contentious Chamber that since the registration functionality via connection to a Facebook or Google account has not changed, but that the interface has evolved (both on the RTBF side and on the Facebook/Meta side on one hand and Google on the other), it transmits a document containing updates mainly in the form of new screenshots. It specifies that this document should be read in conjunction with its summary conclusions of May 14, 2020.

22.

On January 27, 2023, only the defendant is heard by the Contentious Chamber, the complainant having indicated to the Contentious Chamber that he would not participate in the hearing.

23.

On January 31, 2023, the minutes of the hearing are communicated to the parties.

24.

On February 14, 2023, the Contentious Chamber receives from the defendant some remarks regarding these minutes, which it takes into account in its deliberation.

II. Motivation

II.1. Regarding the lawfulness of the processing of data collected during the registration phase

II.1.1. The viewpoint of the SI

25.

As mentioned above, the SI is of the opinion that the defendant cannot rely on the legitimate interest that would be its own and which it invoked during the investigation in its letter of July 11, 2019, in response to the SI's inquiries regarding the lawfulness of the processing of registration data, notably that the SI identifies as a name, a first name, a password, and a valid email address. The SI does not exclude that the defendant could be qualified as a public authority within the meaning of Article 5 of the LTD, it questions the applicability of Article 6.1. f) of the GDPR⁴ and points out in any case that the defendant has not demonstrated to the SI that it has carried out the balancing of interests required by Article 6.1.f) of the GDPR.

⁴ See Recital 47 of the GDPR.

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26.

The SI considers that the defendant is not more justified in relying on its legitimate interest and/or on user consent regarding the processing of data collected during the registration phase for personalization purposes. The legal basis must be identified prior to processing, and the data controller cannot switch from one to another.

II.1.2. The parties' viewpoints

The complainant

27.

The complainant challenges the impossibility of watching a program live on Auvio (in this case, a match of the Red Devils) without having to provide certain personal data to the defendant (the creation of an account with the provision of certain data being mandatory). He indicates that he cannot agree with the way the defendant has designed the Auvio service - which would have the added value of a personalized service: see below - believing "that he should be able to go online to the defendant's site and watch the program of his choice live without providing data" (page 2 of the complainant's conclusions). Consequently, the complainant believes that "RTBF has done nothing to limit the processing of personal data solely to essential cases, necessary for the provision of services and with the free and clear consent of the data subject" (page 1 of the complainant's conclusions of April 28, 2020).

28.

The complainant also denounces that by requesting to engage in dialogue with the services of the APD during the investigation, the defendant has made "repeated attempts to distort the investigation of the Chamber (read SI)", notably by "seeking privileged access to the members of the Chamber" (read to the members of the SI) (page 2 of the complainant's conclusions).

The defendant

29.

In its "Conclusions" and "Summary Conclusions," the defendant primarily argues that the SI's reports are inadmissible and must be dismissed for violating the general principle of good administration to which the APD (and its bodies) is bound in its capacity as an administrative authority. More specifically, the defendant believes that the principle of impartiality (Article 41 of the Charter of Fundamental Rights of the Union) has not been respected.

⁵ It should be noted from the outset that contrary to what the complainant indicates, the defendant requested contact with the services of the Inspection (SI) and not with the Contentious Chamber.

⁶ Article 41: Right to good administration

1. Everyone has the right to have their affairs handled impartially, fairly, and within a reasonable time by the institutions, bodies, and agencies of the Union.

2. This right includes, in particular:

a) the right of every person to be heard before any individual measure which would adversely affect them is taken;

b) the right of every person to access the file which concerns them, respecting the legitimate interests of confidentiality and professional and business secrecy;

c) the obligation for the administration to state the reasons for its decisions.

3. Everyone has the right to compensation from the Union for damage caused by the institutions, or by its agents in the performance of their duties, in accordance with the common general principles of the laws of the Member States.

4. Everyone...

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has been respected considering that the investigation was conducted much more "against" than "in favor," particularly in light of the phrasing in the reports, the vocabulary chosen, or even the punctuation used therein (notably, inappropriate exclamation points). Consequently, these reports support, according to the defendant, an appearance of bias on the part of the Contentious Chamber.

30. The defendant further adds that the duty of diligence and the principle of internal motivation (Article 41.2, 3rd indent of the Charter of Fundamental Rights of the Union) have also been violated, as the final report contains legal errors, particularly regarding the interpretation of Regulation (EU) 2017/1128 "Portability" of June 14, 2017, concerning the cross-border portability of online content services in the internal market.

31. The defendant also claims that the SI did not comply with the LCA, particularly its Article 66 § 1, thus tainting the entire investigation procedure. More specifically, the defendant reproaches the SI for having refused to respond to its request for a meeting on June 17, 2019, a request made to explain itself in the spirit of active cooperation within the framework of the SI's hearing powers.

32. In the alternative, the defendant argues that the substantive allegations of the SI are unfounded.

33. Regarding the legal basis for the processing of registration data (finding 1 of the SI), the defendant states that this question cannot be examined without considering the context in which it was posed by the SI and the timeframe in which it was required to respond. The defendant emphasizes that it was given (too) little time to respond to the ten questions posed to it, during the height of the summer vacation period, under the threat of a finding of non-cooperation in violation of Article 31 of the GDPR, and while facing a refusal to meet with the SI (Article 66 of the LCA – see above). The time taken by the SI to respond, after the defendant's reminder on June 21, 2019, to this request

no one can address the institutions of the Union in one of the languages of the treaties and must receive a response in the same language.

7 The defendant thus particularly believes that the SI wrongly rejected the "Portability" regulation. Indeed, the citizen, when residing in the European Union, continues to have access to certain audiovisual content. Therefore, compliance with this portability regulation requires verification of the user's residence in the European Union (see below).

8 To investigate the case, the general inspector and inspectors may, in accordance with the modalities determined by this law:

1° identify individuals;

2° interview individuals;

3° conduct a written investigation;

4° carry out on-site examinations;

5° consult computer systems and copy the data they contain;

6° access information electronically;

7° seize or seal goods or computer systems;

8° require the identification of the subscriber or habitual user of an electronic communication service or the means of electronic communication used.

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of the meeting has also been accounted for within the already brief timeframe that had been granted to him to submit his responses, the SI having refused any extension of the deadline. The defendant emphasizes that it is in this context that an unfortunate error regarding the legal basis slipped into its response letter dated July 11, 2019.

34. However, according to the defendant, this error is without consequence as it acts in compliance with the GDPR.

35. The defendant further develops that notwithstanding the mention of Article 6.1. f) of the GDPR, its

letter of July 11, 2019 nonetheless contains all the factual indications attesting that the true legal basis for the processing of registration data is the contract entered into with the user (Article 6.1. b) of the GDPR). It emphasizes that in this regard, the Contentious Chamber cannot limit itself to the formulation of legitimate interest (Article 6.1. f) of the GDPR) included in the aforementioned letter of July 11, 2019, as it is its responsibility to verify the facts in light of the law, independently of this manifest error by the defendant.

36. The defendant clarifies that according to its General Terms of Use (GTU), the user can "access our [read: its] services either freely or by prior registration, notably via a form mentioning the necessary data to be completed to allow for optimal use" (Article B.1. GTU).

37. The defendant describes that the Auvio service is not a simple content service: it is a personalized service as evidenced by the information provided on this subject in the registration window on the site as well as in the initial elements of its Data Use Charter, which specifies the following: "We offer you new content to be as close as possible to your tastes" and "Your experience is enriched; your information is used solely to serve your interests" or that the defendant "primarily seeks to provide you with added value, both in terms of content and the form in which it is delivered. This added value can take the form of personalized recommendations or services aimed at improving the accessibility of our content."

38. The defendant specifies that when creating its account (whether or not using a social network connector such as Facebook or Google), it is made clear to the subscriber that they must accept the defendant's GTU before being able to benefit from the service. Registration thus creates a contractual relationship between the user and the defendant.

39. In response to the complainant who believes that they should be able to freely follow the defendant's programs live on Auvio without any communication of personal data concerning them (i.e., without subscription) as well as to the question from the SI on this same matter...

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Subject, the defendant stated, both on April 15, 2019, in response to the SI and through conclusions, that "it is currently not permitted to access the live streaming service on the Auvio site without providing registration data in order to ensure a sound centralized and secure management of the services offered by RTBF on its various internet and mobile platforms, in accordance with Article 43 of the management contract of RTBF, which only imposes an obligation of universal service in broadcasting via terrestrial means in radio and TV or through cable distribution in TV."

40. Regarding the data processed during the registration phase, the defendant explains that what is "necessary for the performance of the contract" within the meaning of Article 6.1.b) of the GDPR does not solely encompass data whose provision is mandatory. The delivery of the service may differ depending on whether all the data that the subscriber is proposed to provide is actually provided or not. In other words, the Auvio contract has several functionalities whose delivery depends on the provision or non-provision of optional personal data. Nevertheless, these data are, according to the defendant, all necessary for the performance of the contract within the meaning of Article 6.1.b) of the GDPR.

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Thus, the first name and last name are processed for the purposes of providing personalized recommendations but also for security purposes, particularly for anti-fraud measures.

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The email address is processed for authentication purposes to complete the registration process. Either the email address entered is already known to the defendant, which indicates an existing account; or the address is not known to the defendant, who sends to the said email address provided by the subscribing candidate an email containing a hyperlink to be activated to finalize the registration.

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The date of birth (entered during the procedure) is processed following a decision of March 8, 2012, by the Higher Council of Audiovisual (CSA), which criticized the defendant for not complying with the obligation to establish a system protecting minors against television programs that could harm their physical, mental, and moral development, in accordance with the decree of the Government of the French Community of February 21, 2013, regarding the protection of minors against television

programs that could harm their physical, mental, or moral development, particularly its Article 4 § 1. To comply with this obligation, the defendant indicates that it has implemented several

9 As needed, the Contentious Chamber specifies that this explanation results from the content of its conclusions as well as from its factual update and what was presented during the hearing.

10 Article 4.1: "In a non-linear television service, a program of category 3, 4, or 5 can only be accessed by the user after entering a parental access code." Ministry of the French Community, Decree of the Government of the French Community of February 21, 2013, regarding the protection of minors against television programs that could harm their physical, mental, or moral development, M.B., March 11, 2013.

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measures recommended by the CSA, such as the establishment of parental control by default, the possibility of creating an access code for content rated "12 years and older," and the prohibition for children under 13 years of age from creating an Auvio profile.

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Regarding the mobile phone number, the defendant explains that Regulation (EU) 2017/1128 of the European Parliament and of the Council of June 14, 2017, on the cross-border portability of online content services in the internal market, applicable since March 20, 2018, requires the provider of this service (i.e., the defendant) to verify the member state of residence (which must be a member state of the European Union (EU)) of the subscriber using one of the verification means it enumerates. A simple email address ending in ".be" is not included in the list of verification means enumerated by this regulation. However, the mobile phone number is included. The defendant, by requesting the mobile phone number from Auvio users who wish to benefit from cross-border portability when they go on vacation in one of the EU countries, thus complies with the GDPR since it is necessary information for using AUVIO abroad.

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The processing of the address responds to the same necessity but also to that of personalization.

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The gender data is also processed for the purpose of personalizing the Auvio service.

41. Finally, the defendant reminds that consent (Article 6.1.a) of the GDPR) – which the complainant alleges should have been obtained – is not the only legal basis that can be invoked, and therefore, consent is not always required before any processing can take place.

II.1.3. Assessment of the Contentious Chamber

Regarding the admissibility of the SI reports

42. Concerning the allegations of bias and lack of thoroughness raised by the defendant against the inspection reports, the Contentious Chamber considers that even assuming they are well-founded, they do not affect its impartiality regarding the grievance concerning the legality of data processing during the registration phase.

11 As already mentioned, RTBF will indicate in a letter dated July 11, 2019, addressed to the SI, that the collection of the date of birth is being implemented to comply with the CSA's decision to limit minors' access to certain content.

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43. When choosing to refer the matter to the SI as in this case, the Contentious Chamber retains, as recognized by the Market Court, a sovereign discretion regarding the complaint. Both the findings of the SI and the arguments presented through conclusions and the documents submitted by the parties contribute to the decision-making of the Contentious Chamber. As an autonomous body, it nevertheless retains the power of appreciation and the freedom to issue, not without relevant and strengthened reasoning in accordance with the requirements of the Market Court, its own legal considerations regarding the situation brought before it, including in relation to the inspection report and the grievances raised against it by the parties, if applicable.

44. In this case, the Contentious Chamber notes that the SI's report concluded, regarding the grievance discussed in this section, that the appeal based on Article 6.1.f) of the GDPR invoked by the defendant was inadmissible. The Contentious Chamber remains free, after review, to agree or

disagree with this analysis. This independent assessment is all the more necessary in this case since the defendant indicated in its conclusions that it had erroneously—due to the circumstances under which it was compelled to respond to the SI—invoked Article 6.1.f) of the GDPR instead of Article 6.1.b) of the GDPR, and the Contentious Chamber will take this into account in the present decision as will be detailed in the section below.

45. Regarding the refusal to respond to the SI's request for a meeting made by the defendant, the Contentious Chamber notes that in a letter dated June 24, 2019, the SI responded that "holding a meeting with the data controller was not within its investigative competencies as mentioned in Article 66 §1 of the LCA." It added that it had chosen to conduct a written inquiry in this case. The Contentious Chamber cannot substitute its assessment for that of the SI in this regard. It notes that the defendant had, in any case, the opportunity to express its position to the latter. As for the complainant's interpretation that the defendant attempted to distort the investigation through its request, the Contentious Chamber believes that this interpretation belongs exclusively to the complainant and that it has no elements to corroborate it.

Regarding the obligation to identify a lawful basis

46. Pursuant to Articles 5.1.a) and 6.1. of the GDPR, any processing of data must be based on one of the lawful bases listed in Article 6.1.a) to f) of the GDPR. The Contentious Chamber

12 Market Court (19th ch. A), December 7, 2022, 2022/AR/560 and 2022/AR/564; Market Court (19th ch. A), December 7, 2022, 2022/AR/556.

13 Market Court (19th ch. A), December 20, 2023, 2023/AR/801 (point 30):

<https://www.autoriteprotectiondonnees.be/publications/arret-du-20-decembre-2023-de-la-cour-des-marches-ar-801.pdf>

14 The Market Court, as the appellate body for decisions of the Contentious Chamber, has explicitly validated the possibility for the decision-making body of an administrative authority to deviate from the conclusions of the body of that same authority responsible for the investigation/inspection. See in this sense: Market Court (19th ch. A), February 28, 2018, 2017/AR/1139 & 2017/MR/1, §25.

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recalls that pursuant to Article 6.1 of the GDPR, the processing of personal data is only lawful if, and to the extent that, it is based on one of the lawful bases listed therein.

47. This lawful basis must be identified prior to processing. There is no doubt that this prior identification results from Article 6.1 of the GDPR even if it is not explicitly stated therein. It arises from the combined reading of said Article 6.1 of the GDPR and Article 13.1 c) of the GDPR, which stipulates that the data controller is obliged to provide the data subject, at the time of obtaining the data concerning them, with all the information listed in Articles 13.1 and 13.2 of the GDPR, including "the purposes of the processing for which the personal data are intended as well as the legal basis for the processing" (Article 13.1 c) of the GDPR). The implementation of this obligation necessarily presupposes that the data controller has identified this legal basis in advance. This identification of the lawful basis prior to the operationalization of the processing contributes to the respect of the principles of fairness and transparency (Article 5.1 a), 13.1 c) and 14.1 c) of the GDPR) as well as to compliance with the principle of accountability and the obligations arising therefrom (Articles 5.2 and 24 of the GDPR).

48. The Contentious Chamber also recalls that it is the responsibility of the data controller to identify a single lawful basis on which they base their processing. This requirement also contributes to the principles of fairness and transparency that they are obliged to implement (Article 5.1.a) of the GDPR). Different consequences arising from one or the other lawful basis, particularly in terms of rights for the data subjects, mean that it is not permissible for the data controller to invoke one or the other at their discretion. Generally speaking, by invoking distinct lawful bases, the data controller creates a certain ambiguity in terms of the exercise of the rights of the data subjects.

49. The Contentious Chamber finds that in this case, the defendant has (even if erroneously as they claim) initially stated that the processing is based on

15 See European Data Protection Board (EDPB), Guidelines 5/2020 on consent under Regulation (EU) 2016/679. See point 121:

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf

16 The Contentious Chamber emphasizes that while Article 30 of the GDPR concerning the Record of Processing Activities does not require in its § 1 that the lawful basis for processing be included among the elements to be recorded, the purpose of the processing must be mentioned, which should lead the data controller to define the corresponding lawful basis. In this sense, without questioning its non-mandatory nature, the Data Protection Authority had recommended at the time to include this lawful basis under the supplementary mentions of the Record. See Recommendation No. 06/2017 of June 14, 2017, on the Record of Processing Activities (Article 30 of the GDPR) (page 17/35 of the French version).

<https://www.autoriteprotectiondonnees.be/publications/recommandation-n-06-2017.pdf>

17 By way of illustration, the data controller cannot simultaneously consider that they base the processing on the consent of the data subject (Article 6.1.a) of the GDPR) and on their legal obligation (Article 6.1.c) of the GDPR). Consent can indeed be withdrawn at any time and while it does not affect the validity of the processing carried out prior to this withdrawal (Article 7.3 of the GDPR), it does not allow the data controller to continue processing in the future (Article 17.1.b) of the GDPR), at least not for the same purpose. By declaring that the processing is based on their legal obligation for another hypothesis (Article 6.1.c) of the GDPR), the data controller fundamentally excludes any possibility of opposition to the processing, as the withdrawal of consent cannot be invoked nor the right to object, which is reserved for the hypotheses of Article 21.1 of the GDPR, that is to say, for the processing of personal data based on Article 6.1.e) or 6.1.f) and not on Article 6.1.c) of the GDPR.

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registration data under Article 6.1. f) of the GDPR (with the SI in the context of the investigation as already mentioned) to subsequently declare reliance on Article 6.1. b) of the GDPR in its conclusions. If the defendant considered its response time to the SI too short, it is not for the Contentious Chamber to comment on the length of it. Without prejudging the good faith of data controllers faced with investigative duties, it appears to the Contentious Chamber that since this is an obligation that must be fulfilled before the operationalization of the processing (therefore from the design stage), information regarding the legal basis relied upon should, in principle, have been immediately available, the identification of which should have been made prior to any implementation of the Auvio service.

50. However, the Contentious Chamber notes that, on the one hand, it was in a detailed manner and with regard to the various data processed that the defendant indicated the basis of legitimate interest in its responses to the SI while also highlighting, on the other hand, in this same correspondence to the SI, elements of its documents which, according to it, clearly reflect that the processing falls within the framework of "the execution of the Auvio contract." If, as the defendant claims, these textual elements were supposed to reveal that indeed a contract was entered into with the user at the time of the facts, it is all the more incomprehensible that the defendant relied on them in a letter in which it invokes its legitimate interest, even though it would have identified the appropriate legal basis beforehand.

51. In light of all the circumstances of the case, the arguments of the parties, and its duty of diligence, the Contentious Chamber will examine below the relevance of relying on Article 6.1. b) of the GDPR, not without concluding that there has been a breach of Articles 5.1. a) and 6.1 of the GDPR on the part of the defendant due to the communication of Article 6.1. f) of the GDPR as a legal basis by the defendant to the SI. This communication, even if made in error - which error does not negate the aforementioned breach - reflects, according to the Contentious Chamber, a failure to identify the legal basis in advance, which it will choose not to sanction (see below).

Regarding the reliance on the legal basis of Article 6.1.b) of the GDPR

52. The Contentious Chamber recalls that reliance on the legal basis of Article 6.1. b) of the GDPR is subject to 3 conditions:

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(1) a contractual or pre-contractual relationship exists between the data controller and the data subject;

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(2) the contract must be valid under applicable law;

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(3) the processing of personal data meets the necessity condition, in other words, the data processed

is indeed necessary for the execution of the contract.

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53. The manner in which Article 6.1. b) of the GDPR must be applied has been the subject of several clarifications in recent years through Guidelines from the European Data Protection Board (EDPB)¹⁸, binding decisions from the EDPB based on Article 65 of the GDPR¹⁹, and ultimately in a ruling from the Court of Justice of the European Union (CJEU) dated July 4, 2023²⁰. This case law is summarized below and applied to the case at hand.

54. Regarding conditions (1) and (2), the data controller must, in accordance with its accountability obligation under Article 5.2. of the GDPR, be able to demonstrate a) that a contract exists – that is, that the data subject and the data controller are engaged in a contractual relationship – and b) that the contract is valid under the applicable national contract law.

55. In this case, the Contentious Chamber is of the opinion that a contract has indeed been concluded between the user on one hand, here the complainant, and the defendant on the other hand through the subscription to the Auvio service (acceptance of the terms of the General Terms and Conditions and provision of personal data). No element calls into question the validity of this contract under the applicable Belgian law. As for the question of whether the existence of a contract was indispensable, the Contentious Chamber takes note of the management contract of the defendant and the absence of an obligation for the latter to provide free access to its media content via the Internet. In this instance, the Contentious Chamber has no elements that would allow it, in the exercise of its competencies, to contest the applicability of this management contract, its content, or the consequences drawn therefrom in this case.

56. Regarding the necessity condition for the processing of the concerned personal data (3), the Contentious Chamber recalls that in its Huber ruling, the Court of Justice of the European Union (CJEU) specified the following regarding this necessity condition:

“in light of the objective of ensuring a level of protection equivalent in all Member States, the notion of necessity as resulting from Article 7,

18 European Data Protection Board (EDPB), Guidelines 2/2019 of October 8, 2019 on the processing of personal data under Article 6, paragraph 1, point b), of the GDPR in the context of providing online services to data subjects https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines-art-6-1-b-adopted-after-public-consultation_fr.pdf

19 European Data Protection Board (EDPB), Binding Decision 2/2022 concerning the dispute regarding the draft decision of the Irish supervisory authority regarding Meta Platforms Ireland Limited (Instagram) under Article 65, paragraph 1, point a) of the GDPR – points 80 to 100: https://www.edpb.europa.eu/our-work-tools/our-documents/binding-decision-board-art-65/binding-decision-22022-dispute-arisen_fr and European Data Protection Board (EDPB), Binding Decision 3/2022 on the dispute submitted by the Irish SA on Meta Platforms Ireland Limited and its Facebook service (Article 65 GDPR) – points 106 and following. This decision exists only in English and German:

https://www.edpb.europa.eu/system/files/2023-01/edpb_bindingdecision_202203_ie_sa_meta_facebookservice_redacted_en.pdf

20 Court of Justice of the European Union, judgment of July 4, 2023 – Case C-252/21 Meta Platforms E.A. (general terms of use of a social network), ECLI:EU:C:2023:537, points 97 and following.

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under e)²¹ of Directive 95/46, which aims to precisely delineate one of the hypotheses in which the processing of personal data is lawful, cannot have a variable content depending on the Member States. Consequently, it is an autonomous concept of Community law that must be interpreted in a manner that fully responds to the purpose of this directive as defined in Article 1, paragraph 1, thereof »²² (It is the Contentious Chamber that emphasizes this).

57. This jurisprudence formulated in relation to Article 7.e) of Directive 95/46/EC applies to all lawful bases that retain this necessity condition. It remains relevant today even though Directive 95/46/EC has been repealed, as this necessity condition is maintained under Article 6.1 b) to f) of the GDPR.

58. The Article 29 Working Party also referred to the case law of the European Court of Human Rights (ECHR) to clarify the necessity requirement²³. It concluded that the adjective "necessary" does not

have the flexibility of terms such as "admissible," "normal," "useful," "reasonable," or "opportune."²⁴ 59. With regard specifically to Article 6.1.b) of the GDPR, the necessity of data processing is first assessed in light of the primary objective of the contract: the data controller must ensure that the provision of the product or service cannot occur in the absence of the implementation of the processing of the data in question. If, on the contrary, the objective of the contract can be achieved without the implementation of specific data processing, the necessity condition is not met.

60. The necessity of the processing is also assessed in light of the expectations of each party regarding the objective of the contract: the data controller must not rely solely on its own viewpoint to evaluate its necessity in light of this objective; it must also take into account the perspective of the data subject, their understanding of the primary objective of the contract, or how the service has been promoted. The objective must be mutually understood as requiring the processing of the concerned data.

61. It is therefore appropriate to interpret the necessity condition restrictively when analyzing the legal basis of the contract: it does not cover situations in which the processing is not truly necessary for its execution but rather imposed.

21 Member States provide that the processing of personal data may only be carried out if: (...) e) it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller or the third party to whom the data are disclosed.

22 CJEU, December 1, 2008, judgment in *Heinz Huber v. Federal Republic of Germany*, C-524/06 para.52.

23 Article 29 Working Party, Opinion 06/2014 of April 9, 2014 on the concept of legitimate interest pursued by the data controller within the meaning of Article 7 of Directive 95/46/EC, WP 217.

24 ECHR, March 25, 1983, *Silver and Others v. United Kingdom*, § 97.

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unilaterally to the person concerned by the data controller. In other words, the processing in question must not aim at another objective, allowing for example the pursuit of distinct or exclusive interests of the data controller.

62. In summary, the processing in question must be "objectively indispensable" to the execution of the contract (that is, to achieve a purpose that is an integral part of the contractual service intended for users) such that the main object of this contract could not be achieved in the absence of this processing. Necessity is not determined solely by the formalization of the contract and its content. If there are realistic and less intrusive alternatives, the processing is not necessary. The data controller should be able to justify the necessity of its data processing in relation to the fundamental and mutually understood contractual purpose. In this regard, it should finally be possible for an ordinary user to know the "fundamental and mutually understood" purpose based on the information presented by the data controller.

63. The Contentious Chamber decides that the Auvio service, being designed as a contract for the provision of personalized content, cannot fulfill the objective of this contract without the processing of a certain number of personal data (see below). It considers - in addition to the fact that it can reasonably be assumed that the perception of a personalized offer necessarily involves, at this time, a certain amount of personal data - that in the context of the case at hand, the information provided by the defendant at the time of subscribing to the contract (via account creation) is sufficiently explicit. In other words, the objective of the Auvio contract must, according to the Contentious Chamber, be considered as mutually understood.

64. Only the "necessary" data for the execution of said contract, regardless of the method chosen to subscribe (either by directly providing personal data on the "Auvio" page of the defendant's website or via connection to the social networks Facebook or Google of the subscriber according to the latter's choice), may nonetheless be processed.

65. As for the data identified by the SI in its investigation report as being the mandatory registration data at the time of the investigation (name, first name, password, and email address), the Contentious Chamber considers that they are indeed "necessary for the execution of the 'Auvio' contract." This data allows for the secure identification of the user and the creation of their account.

25 (points 88-94 of decision 02/2022).

26 As indicated in the investigation report, this purpose must nonetheless be reiterated by the defendant in its documents.

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66. Regarding the other data mentioned in point 40 above, the Contentious Chamber makes the following findings.

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Concerning the phone number and residence of the user, the Contentious Chamber is of the opinion that the applicability of Regulation (EU) 2017/1128 of the European Parliament and of the Council of June 14, 2017, on the cross-border portability of online content services in the internal market is indeed likely to require the processing of this data in order to allow access to the Auvio service for Belgian residents when they are in another EU country. In doing so, this data may be considered "necessary for the performance of the contract" as thus "expanded" regarding the accessibility of the Auvio service. The Contentious Chamber recalls that if any of this data were sufficient for the purposes of this expanded personalized offer, only one of them could be processed in execution of the principle of minimization, notwithstanding the fact that the residence data is also processed for personalization purposes (weather, for example).

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Regarding the processing of the subscriber's date of birth, the Contentious Chamber is of the opinion that it does not have sufficient elements and technical findings to conclude on the objective necessity of its processing for the performance of the contract. The Contentious Chamber takes note of the reasoning invoked by the defendant based on a decision from the CSA and on the obligations to which it is subject arising from the decree concerning the protection of minors with respect to certain content. Age verification for these purposes, if such is the obligation arising therefrom, must be carried out in compliance with data protection rules, particularly the principle of minimization. As with any age verification system, the data controller must opt for a system that guarantees respect for privacy and the protection of the personal data of the users concerned. The defendant must therefore be able to demonstrate that the date of birth is indeed indispensable to execute the contract legally and that any other less intrusive measure in terms of personal data protection could not achieve the desired result.

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As for the gender data, the Contentious Chamber notes that here too, it does not have sufficient information regarding the personalization of the service to which the processing of this data leads. The Contentious Chamber recalls that this processing for personalization purposes must necessarily occur in compliance with the law in general, including, in addition to the GDPR, non-discrimination rules, for example, and all the norms (legal in particular) to which the defendant is subject. It is also the responsibility of the defendant to demonstrate that this is the case.

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Regarding the profile picture processed when the user chooses to register via the social network to which they are already registered, the Contentious Chamber refers to point 89 below.

67. In conclusion, insofar as it can demonstrate that all this data is essential for the variable personalization of the "Auvio" service (service as presented in the various informational documents made known to the users of the service), the defendant is authorized to rely on Article 6.1. b) of the GDPR. When this data is optional, it is important that this is clearly specified to the user as well as the personalization of the service that will result; this is so that the subscriber can make an informed choice.

II.2. Regarding the use of social media data for connection/registration purposes

II.2.1. The viewpoint of the SI

68. As previously stated, the SI notes in its investigation report that the distinction between the connection and registration mechanism via social media lacks clarity, contrary to Articles 12.1, 13, and 14 of the GDPR. It observes that the registration and connection mechanisms are almost identical.

69. The report adds that following his connection with his Facebook identifier, a technical advisor from the SI found that a profile had been created with his Facebook data on the defendant's site without his knowledge, data that he was also offered to complete. The SI concludes that the mechanism used,

under the guise of connecting via a Facebook account, is in fact the creation of an RTBF account with the provision of the user's Facebook data, without the latter being informed. The SI concludes that this process is in contradiction with Articles 5.1.a), 5.1.b), 5.1.c), 12.1, 13, and 14 of the GDPR.

28 The Contentious Chamber draws the defendant's attention to the recent ruling of the Court of Justice of the European Union (CJEU) of January 9, 2025 - the factual circumstances and legal elements of which are certainly different - in case C-394/23, *Mousse v. National Commission for Informatics and Liberties (CNIL) and SNCF Connect*, particularly the CJEU's point of attention regarding the risk of discrimination in terms of gender.

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II.2.2. The Parties' Views

The Complainant

70. The complainant indicates that the issue lies not so much in the question of informing the user who seeks to register, but rather in the choice made by the defendant to make Auvio a personalized service for which it will consequently be necessary to create an account and provide certain personal data for this purpose.

The Defendant

71. As a primary matter, the defendant concludes, as mentioned in section II.1.1, that the findings of the SI should be dismissed. Findings 5 and 6 made by the SI are, according to her, sad examples of its lack of thoroughness and impartiality, which taint the impartiality of the Contentious Chamber by extension.

72. Regarding finding 5, which accuses her of failing in her duty of transparency in presenting the two options for creating an Auvio account, namely "registration" on one hand and "login" on the other, the defendant believes that users are never misled about the consequences of each of these procedures.

73. As for finding 6, which she considers intrinsically linked to finding 5 and which accuses her of not informing the user that logging in via a Facebook account is "in fact the creation of an RTBF account with the provision of the user's Facebook data," the defendant believes it is unfounded. She adds that she never has access to the user's Facebook or other accounts.

74. In her "Summary Conclusions," the defendant detailed the steps of the registration procedure via a social network connector (Facebook or Google).²⁹

75. The defendant believes that it follows from these steps that, contrary to the SI's conclusion, it is very clear to the user that their name, photo, and email address are communicated to the defendant given (1) the numerous occasions on which both the Data Usage Charter and her Terms of Use are brought to the user's attention and (2) the express indication by Facebook that this personal data is shared. Thus, regarding the sharing of data itself, the SI's findings 5 and 6 for lack of transparency are unfounded. The process described

29 The user starts by clicking on a SIGN UP button via Facebook. A separate window then opens in which the user is asked to log in to their Facebook account, for example. Once logged into this account, Facebook informs them that the process will lead to the transmission to the defendant of their name, profile picture, and the email address linked to their Facebook account. This window presented by Facebook contains links to the defendant's Data Usage Charter (RTBF's privacy policy) and to the defendant's Terms of Use.

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as evidenced by updated screenshots during the hearing, according to the defendant, in the same way.

76. Finally, the defendant denies any data flow "from RTBF to Facebook" as claimed by the complainant. She emphasizes that, however flawed the SI's reports may be in terms of thoroughness and impartiality, they do not mention such a flow. She insists that on Auvio, interaction with Facebook only occurs to seek information that facilitates the creation of an Auvio account. More explicitly, as noted in the hearing minutes, when the user chooses to register to connect to Auvio or connects to Auvio from said social networks, there is no return communication of data from RTBF to these social networks (for example, data regarding what may have been viewed).

II.2.3. The Assessment of the Contentious Chamber

Regarding the Admissibility of the SI's Reports

77. Regarding the grievances raised against the SI's reports, the Contentious Chamber reiterates the arguments it developed earlier in section II.1.3, according to which, even if these grievances were founded, they do not taint its power of appreciation and decision-making by extension. Given the time elapsed since these reports, the Contentious Chamber has thus requested, as already mentioned, that the defendant present how the registration procedure via connection to a social network was conducted as closely as possible to the date of the hearing (point 20 above).

Regarding the Transparency of the Account Creation Process via Connection to a Social Network

78. The Contentious Chamber recalls that under the principle of fairness and transparency and its obligation to inform (Article 5.1. a) and 12.1 read in conjunction with Articles 13 and 14 of the GDPR), the defendant is required to present the data processing it carries out in a manner that is easily understandable for the user, with any deception or confusion being excluded.

79. Therefore, the registration process via the creation of an Auvio account—whether through a social network connector (Facebook, Google) or not—must be clearly presented both in words and visually without confusion with a possible direct connection without going through the "create account" or "I already have an account" step.

80. Allowing the future user to create an account based on data from a social network on which they are already registered is a conscious choice of the defendant. During the hearing, she emphasized that this choice was made to facilitate access for her users to Auvio content. However, one who makes this choice cannot completely disregard the need for clear communication regarding the process.

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to clarify how the communication of data from the social network operates towards its service. Creating an Auvio account "from scratch" or via a social network is a choice that belongs to the user. However, the user must be informed of the data processing that will occur in this case to enable them to make an informed choice.

81. The statements provided for this purpose must be perfectly explicit - both in text and visually - so that the user understands that they have the choice, (1) either to create an account through the communication of data to the defendant directly from the "Auvio" registration page, (2) or to create an account via a connection to their favorite social network, from which available and necessary data for the execution of the Auvio contract (see below) will be reused for the creation of the Auvio account.

Regarding the creation of an account via a social network connector, it must also be clear that the connection to that social network is part of the registration process and aims to create an account on Auvio based on the available data on said social network that are necessary for this service. It must be unequivocally clear that this is not, as previously mentioned, a simple direct connection to Auvio via the social network. Any account creation without the user's knowledge during their connection via a social network (outside the registration process) is prohibited.

82. The information regarding the data processing involved in this account creation must be available (if applicable, via an active hyperlink leading to the relevant information documents) at the time of account creation.

83. In each case, only the data essential for the execution of the Auvio contract may be processed under Article 6.1.b) of the GDPR (see above title II.1.).

84. The Contentious Chamber is of the opinion that during the hearing, the defendant sufficiently demonstrated that regarding the registration process, there was, at that date, no confusion between connection on one hand and registration on the other.

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After clicking on "Log in" on the Auvio page, a window appears with two distinct buttons: "I already have an account" and "Start my registration."

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By clicking on "Start my registration," a new window appears with the buttons "Continue with Facebook," "Continue with Google," as well as a registration form to be completed directly on the Auvio page.

85. The Contentious Chamber therefore notes that the possible connection via the social networks

Facebook or Google indeed occurs in the continuity of the registration process. The configuration of the pages does not allow for connection without a new account "Start a registration" or without a pre-existing account "I already have an account."

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86. The Contentious Chamber also notes that under the buttons "Continue with Facebook" and "Continue with Google," the following text is provided: "If you register via Facebook or Google, you also authorize RTBF to access certain of your personal data and you accept the general terms of use of RTBF (highlighted hyperlink) and the Auvio usage contract (highlighted hyperlink). RTBF does not transmit personal information about you to Facebook and Google in this context. For more information, please consult the FAQ. Their tracking cookie will be activated automatically."

87. It follows that the subscribing candidate is thus informed that data from their social network will be transferred to the defendant for the purpose of subscribing to the Auvio contract, the content of which is detailed in the documents also provided. The Contentious Chamber understands that this data is that detailed in the step below. It believes that more immediate information would be preferable.

88. The Contentious Chamber also notes from the defendant's presentation that by clicking on "Continue with Facebook," a login window appears that states "Log in to use your account with RTBF," and that once the Auvio user candidate is logged in via their Facebook credentials, the following message appears: "RTBF requests access to Your name and profile picture and email address." Once the account is created, the user can provide additional information. Thus, in addition to the email, password, and first and last name, the user can add their address, postal code, city, and country, as well as their mobile number and date of birth or gender (see the screenshot from the presentation on January 23, 2023, and the factual update of January 4, 2023, page 3). The Contentious Chamber acknowledges that a comparable process is provided via Google.

89. Regarding the profile picture, the Contentious Chamber believes that the defendant has failed to demonstrate that it is "necessary for the performance of the contract within the meaning of Article 6.1. b) of the GDPR. Furthermore, and as far as necessary, the Contentious Chamber specifies that the considerations it has expressed in Title II.1.3 apply regardless of the method of account creation.

90. In conclusion, the Contentious Chamber is aware of the time elapsed since the investigation report as well as since the hearing took place. It adopts this decision based on the preceding elements, including those presented to it during the hearing, and concludes that it currently does not have elements allowing it to conclude a violation of the articles highlighted by the SI in its investigation report regarding findings 5 and 6 (points 7 and 68-69).

91. Subject to some adjustments of hyperlinks to unavailable information or leading to incorrect documents and more appropriate formulations, the Contentious Chamber believes it has been able to ascertain that the registration procedure was presented in clear steps and that one of its modalities allowed for connection to a social network for the purpose of creating an Auvio account.

III. Corrective Measures and Sanctions

92. Pursuant to Article 100.1 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with requests from the concerned person to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or deletion of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;

In the hearing report, it is mentioned that the clause regarding registration via Facebook or Google is identical whether the internet user chooses to "Continue with Facebook" or "Continue with Google," whether they already have an account (thus only seeking to log in) or are starting a registration. In the case where they already have an account (and are seeking to log in and not to register), the wording does not appear relevant as it explicitly targets the registration process. The defendant has indicated that it will take this into account in its observations on the hearing report.

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15° to transmit the file to the Public Prosecutor of the King of Brussels, who will inform it of the follow-up given to the file;

16° to decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

93. In support of the preceding findings, the Contentious Chamber decides, considering the circumstances of the case, particularly the age of the file (1) to send the defendant a warning that, should the defendant in the future be unable to demonstrate that the data processed during the registration phase are all "necessary for the performance of the contract" Auvio within the meaning of Article 6.1. b), it would be guilty of a breach of Article 6.1 of the GDPR.

94. For the remainder, the Contentious Chamber decides to dismiss the complaint, in accordance with Article 100.1, 1° of the LCA, for the reasons set out below.

95. In matters of dismissal, the Contentious Chamber is required to justify its decision step by step³⁴ and to:

- pronounce a technical dismissal if the file does not contain or does not contain sufficient elements likely to lead to a sanction or if it has a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal, if despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities of the Data Protection Authority (DPA) as specified and illustrated in its Dismissal Policy³⁵.

96. In the event of a dismissal based on several grounds, these must be addressed in order of importance³⁶.

97. The Contentious Chamber decides that in this case, the complaint must, apart from the warning issued above in point 101, be dismissed. This dismissal occurs for technical reasons as it has concluded that no finding of a violation of the GDPR could be retained against the defendant regarding the other grievances raised by the complainant or the SI, except for the breach of Article 5.1 a) and

34 Market Court (Court of Appeal of Brussels), September 2, 2020, judgment 2020/AR/329, p. 18.

35 In this regard, the Contentious Chamber refers to its dismissal policy as developed and published on the website of the Data Protection Authority: <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>

36 Cf. Title 3 – In what cases is my complaint likely to be dismissed by the Contentious Chamber? of the dismissal policy of the Contentious Chamber.

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filed with the registry of the Market Court in accordance with Article 1034quinquies of the C. jud.³⁸, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the C. jud.).

(sé). Hielke HIJMANS

President of the Contentious Chamber

4° the subject and a brief summary of the grounds of the request;

5° the indication of the judge who is seized of the request;

6° the signature of the applicant or their lawyer.

38 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.